

2:00 PM

LINE 7

24-CIV-06446

PATRICK SCOTT, ET AL. VS. FORD MOTOR COMPANY, ET AL.

PATRICK SCOTT
FORD MOTOR COMPANY

ROGER KIRNOS
MICHAEL D MORTENSON

PLAINTIFFS' MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

TENTATIVE RULING:

Plaintiffs Patrick Scott and Cheryl McBride's motion for attorneys' fees, costs and expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement.

On October 14, 2024, plaintiffs filed this Song-Beverly case, and on December 17, 2025, plaintiff filed a notice of conditional settlement. Plaintiffs seek a total fee award of \$16,528.50 (lodestar amount of \$11,019.00 with a 1.5 multiplier) and costs of \$3,102.38.

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement was reached in this case and plaintiffs filed this motion, which defendant has opposed. The court finds the sniping between counsel, especially in the reply brief unprofessional.

As the prevailing party, plaintiffs' counsel are entitled to their attorneys' fees. A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105 (*Reynolds*)). The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies should receive reasonable attorneys' fees. (*Reynolds*, at p. 1111.)

Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case." (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) "[T]he fee setting inquiry in California ordinarily

begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County where this case is venued. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1095].) Plaintiffs cite to a number of trial court opinions that awarded their counsel’s requested hourly rate. Some of those cases were from the San Francisco Bay Area, and one was from San Mateo County, *Benjamin v. FCA US LLC*, 17Civ02123 (Kirnos Decl., ¶29(h), Ex. DD.) Defendants object that the requested hourly rates are too high for Song-Beverly cases in San Mateo County. However, there examples are not from San Mateo County and the ELM Solutions 2022 Real Rate Report is from 2022. ((Maggio Decl., Ex. B.) This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds, supra*, 47 Cal.App.5th at pp. 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.” (citations omitted)]). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. The Laffey matrix is another resource to determine a reasonable hourly rate. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].) The court finds that hourly rates ranging from \$145.00 to 600.00 reasonable to prosecute a Song-Beverly case in San Mateo County.

As to the reasonableness of the work, this court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424 (superseded in part by statute on other grounds), in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ “ and drew an analogy to private billing practices: “ ‘Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. “In the private sector, ‘billing judgment’ is an important component in fee setting. It is no less important here. Hours that are not properly billed to one’s client also are not properly billed to one’s adversary pursuant to statutory authority.” ‘ “ (*Harman v. City and County of San Francisco*, at p. 1310 [quoting *Hensley v. Eckerhart*, at p. 434].) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel’s burden “to persuade the trial court the work was reasonably necessary, both as to the particular

tasks performed and the amount of time devoted to them.” (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [internal quotations and citation omitted].)

Here, plaintiff’s counsels’ time entries show 27.1 hours expended for a total lodestar of \$11,019.00 (Kirnos Decl., ¶2, Ex. A.) The court expresses concerns that timekeepers only record their time on a weekly basis. (Kirnos Decl., ¶ 21.) Generally, firms that bill their time in the tenth of an hour increments keep daily time records.

Defendants seek to reduce specific time:

Defendants argue to exclude fees billed for attorneys not licensed in California and identify Luis Pagola. However, plaintiffs’ counsel only used him as a law clerk, which has his hourly rate of \$200, which hourly rate the court finds reasonable.

Defendants claim that most of the work was “cookie-cutter template” work. A great deal of work, on both sides of the aisle in all sorts of the case is repetitive. Even though, for example, the same discovery must be propounded in each case, the lawyer responding to the discovery has a professional duty to respond on behalf of the individual client. The court finds the time for responding to discovery reasonable.

However, for the PMQ deposition, since defendants objected, the court finds the billing of .9 hours on September 8, 2025 for \$475.00 unreasonable and strikes it.

The court finds the clerical work compensable. (*Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (1985) 172 Cal.App.3d 914, 951; *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.) However, the court finds that a reasonable hourly rate is \$145.00 per hour, the rate charged by paralegal Patricia Cortazar.

The court finds the challenged internal communications and the “block billing” on October 15, 2025 de minimus and reasonable.

The court finds the entry on August 28, 2025 and September 12, 2025 for a non-attorney to send a client communication reasonable. Attorneys have a professional obligation to keep their clients informed about the case.

The court finds the time for preparing the fee motion reasonable and the reasonable rate to be \$350.00 per hour for this type of work. Since defendants have made numerous challenges to the motion, which plaintiffs’ counsel needed to review and prepare the reply, the court finds the anticipated time for the opposition and reply reasonable and the reasonable rate to be \$350.00 per hour. If defendants contest the tentative ruling, the court will grant an additional fee request for the time spent preparing for and attending the hearing.

The court denies a request for a lodestar. The lodestar amount “ ‘may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.’ ([Citations])” (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) “ ‘[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” [Citation] ‘[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, *e.g.*, to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.’ [Citation] In cases involving the enforcement of constitutional or statutory rights, “such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] ‘[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.’ ” [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. (*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.) The court considers the contingent risk and delay in the hourly fee and does not find a multiplier appropriate in this case.

On May 7, 2026, plaintiffs filed a cost bill. No motion to strike or tax the costs was filed within the statutory period. (Cal. Rules of Court, rule 3.1700(b)(1). Moreover, if, as in this case, items on a verified memorandum of costs appear to be proper, they are *prima facie* evidence of their propriety and it is up to defendants in this case to show that the costs were not reasonably incurred. (*Cal. Judges Benchbook Civ. Proc. Trial* § 16.18 (Jul 2026 update).) Defendants do not show that any cost was not reasonable incurred, but only contend that plaintiffs have not demonstrated that the costs were reasonably incurred. The court finds the costs reasonable and necessarily incurred.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiffs shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should include the total of the attorneys’ fees and costs awarded.

2:00 PM

LINE 8

25-CIV-00580

JOSE WALTER PAZ VS. EMILY KRISTEN BURNS

JOSE WALTER PAZ
EMILY KRISTEN BURNS

DANIEL DE SOTO
AKHILA GANAPATHY

PLAINTIFF JOSE WALTER PAZ' MOTION TO APPOINT SUCCESSORS IN INTEREST

TENTATIVE RULING:

Before the Court is the motion of Fernando Paz Romero, Steven Paz Romero, and Damaris Romero Canas to be appointed as the successors-in-interest to Plaintiff Jose Walter Paz who passed away November 22, 2025. (Declaration of Daniel A. De Soto in support, Ex. A.) Defendant Emily Kristen Burns filed her notice of non-opposition to the motion on August 5, 2026. The motion is GRANTED.

Under California law, “a cause of action for ... a person is not lost by reason of the person’s death...” (Code Civ. Proc. § 377.20, subd. (a).) Code section 377.30 addresses who may pursue a survival action for a decedent. Under this section, a “cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest, ... and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc. § 377.30) A successor in interest is defined as “the beneficiary of the decedent’s estate” or any “other successor in interest who succeeds to cause of action or a particular item of the property that is the subject of a cause of action.” (Code Civ. Proc. § 377.11.)

Code of Civil Procedure section 377.32, requires one seeking “to continue a pending action or proceeding as the decedent’s successor in interest” file a declaration stating, among other things, (1) “ ‘[n]o proceeding is now pending in California for administration of the decedent’s estate[,]’ ” (2) the declarant is the decedent’s successor in interest, and (3) “ ‘[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.’ ” (Code Civ. Proc. § 377.32, subd. (a).)

Here, successors in interest Fernando Paz Romero, Steven Paz Romero, and Damaris Romero Canas have each submitted their section 377.32 declarations in support of the motion and plaintiff filed a notice of non-opposition. (De Soto Decl. Exs. A-D.) Accordingly, for good cause shown, the motion is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for plaintiff shall prepare a written order consistent with this ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
